

Comprehensive Legal Filings to Counter PPO Fraud, Custody Interference, and Judicial Bias

1. Fraud on the Court (Fabricated Evidence & Improper PPO Use)

Begin by documenting the **fraudulent acts** used to obtain and abuse the PPO, and seek to have the PPO vacated or narrowed on that basis. Key points to include:

- **Staged Evidence & False Allegations:** Detail how Emily Watson (and her mother) *fabricated or misrepresented evidence* to justify the original PPO. For example, the PPO petition relied on innocuous items that were portrayed as threats – *a jar of rubbing alcohol was labeled “poison,” and photos of routine stored belongings were spun as “surveillance”* ¹. Emergency responders found **no injuries or poisoning** despite those claims ¹, underscoring that the allegations were baseless. If available, attach proof like **photo metadata or witness statements** indicating a third-party (e.g. her mother) staged or took those photos ². Such evidence shows a deliberate attempt to deceive the court.
- **Coerced Service of the PPO Order:** Describe the **improper service** of the initial PPO, which was done by Emily’s parents through a surprise ambush. According to the facts, **Emily’s parents hid in a garage and coerced Andrew Pigors into accepting and signing the PPO papers under duress**. This incident (taking place at 2160 Garland Dr.) occurred during a 30-day eviction period – suggesting the family timed the ambush to *accelerate Mr. Pigors’ eviction* and gain an upper hand in custody matters ³. Emphasize that service by the petitioner’s family members in a threatening manner violates standard procedure and further illustrates bad faith. (If a police report or affidavit describes a family member even breaking into a window or otherwise trespassing to serve papers, include that detail as it evidences an intent to **intimidate** and flout proper process.) The court should be made aware that the PPO was **not served by a neutral party** but via coercion, casting doubt on its legitimacy from the start.
- **PPO Misused to Evict and Retaliate:** Connect these fraudulent and coercive acts to the **broader misuse of the PPO**. Specifically, note that immediately after obtaining the PPO, Emily or her agents used it to **fast-track an eviction** of Mr. Pigors from his residence ³. This implies a collusive retaliation – i.e. leveraging a protection order (meant for safety) as a weapon in a housing dispute. Such conduct is *indicative of a fraudulent motive*, not a genuine need for protection. Document any coordination between Emily and the park management or housing agents (for instance, if the timing of the PPO coincided with eviction filings or if references to the PPO were made in eviction proceedings). These facts bolster an argument that the PPO was **obtained under false pretenses and abused for ulterior goals**, amounting to *fraud on the court*.

Legal Action: File a **Motion to Terminate or Vacate the PPO** on grounds of fraud, misrepresentation, and abuse of process. Under Michigan law, courts may grant relief from an order obtained through fraud or misconduct (intrinsic or extrinsic) – e.g. *MCR 2.612(C)(1)(c) allows setting aside a judgment/order for “fraud (intrinsic or extrinsic), misrepresentation, or other misconduct of an adverse party”* ⁴. Highlight that there is

no time-bar if the fraud is serious enough to amount to “fraud on the court” (a scheme that undermined the judicial process itself). Request not only that the PPO be dissolved or narrowed, but also any appropriate sanctions. If the court finds egregious wrongdoing, it can **sanction the perpetrating party** or award fees. (Michigan courts have recognized that a party forced to litigate due to an adversary’s fraudulent conduct may recover attorney fees incurred because of that misconduct ⁵ – though as a self-represented litigant, focus on remedies like vacatur of orders and perhaps a referral for perjury or contempt against those who committed the fraud.)

Supporting Documents: In the filing, include a **detailed affidavit** by Mr. Pigors laying out the above facts. This affidavit should be **verified pursuant to MCR 1.109(D)(3)** (i.e. a declaration under penalty of perjury, which Michigan allows in lieu of notarization) ⁶. Attach all relevant **exhibits** (e.g. photographs, metadata reports, police/EMS reports disproving injury, any correspondence about the eviction) and label them clearly (Exhibit A, B, C, etc.). Provide an **exhibit index** describing each item (for example, “*Exhibit C: Photo of mason jar falsely identified as poison (with metadata showing it was created by petitioner’s mother)*”). By presenting a cohesive factual narrative with evidence, you establish a compelling record of fraud on the court. The relief section of the motion should **precisely request** that the PPO be terminated *ab initio* or, at minimum, modified to remove the fraudulent elements and prevent further abuse ⁷.

2. Custody Suppression and Parental Alienation

Next, address the **systematic interference with parenting time** and the court’s improper suspension of custody rights. The goal is to restore regular contact with the child and expose how the PPO and other actions have been used to alienate the child from the father, in violation of Michigan law and court rules. Key points:

- **Chronic Denial of Parenting Time:** Outline the history of parenting time obstruction by Emily. Notably, the child has been withheld from Mr. Pigors since **July 29, 2025**, and there were prior periods of alienation (e.g. an incident on 2024-11-09 where Emily kept the child on the child’s birthday, plus a pattern totaling dozens of denied days in 2024 ⁸). If you have already compiled a *timeline or affidavit* documenting these incidents (as indicated by earlier filings), incorporate it by reference or attach it as an exhibit. This timeline of interference (missed visits, unilateral cancellations, false excuses, etc.) demonstrates a **consistent pattern of alienation**. Emphasize that these acts violate the child’s right to a relationship with both parents and were often **justified using the PPO** (“cover” for denying exchanges, restricting communication to arrange visits, etc.).
- **PPO Leveraged to Eliminate Parenting Time:** Explain how the PPO has been wielded to **chill or block contact** between father and child. For example, routine co-parenting communications and exchanges were recast as PPO “violations,” leading to show-cause proceedings that frightened Mr. Pigors away from ordinary communication ⁹. The PPO’s broad no-contact provisions made it nearly impossible to coordinate on the child’s needs (school, medical, scheduling) ¹⁰. Crucially, point out that instead of finding *workable solutions* (like using a parenting app or third-party drop-offs), the opposing party and even the court defaulted to **zero contact**, effectively weaponizing the PPO to suspend parenting time ¹¹. Michigan court rules explicitly discourage this approach: **if a PPO exists, the court should accommodate parenting time with safety conditions, rather than use the PPO as a de facto ban on visits** ¹¹. Cite *MCR 3.706(C)(3)(a)*, which requires that when a modification of parenting time is sought to comply with a PPO, the hearing on that modification “*must be held within 21 days*” of the motion ¹² – indicating that PPO-related parenting issues must

be addressed promptly, not left lingering as a backdoor way to cut off a parent. Here, no such timely coordination occurred, and the PPO was misused to sidestep custody orders.

- **Unlawful Ex Parte Suspension of Custody:** The most critical event is the **ex parte order of August 8, 2025** in the custody case that suspended Mr. Pigors' parenting time (at Emily's request) without a hearing ¹³. Highlight that **Mr. Pigors objected immediately** (on 8/8/2025 and again on 8/21/2025) and by court rule, a prompt evidentiary hearing should have been held to justify any continued suspension ¹⁴. However, more than 14 days elapsed and no timely evidentiary hearing occurred, meaning the ex parte order converted into a temporary order in effect ¹⁵ ¹⁶. This is procedurally improper under the newly-amended Michigan Court Rules: as of June 18, 2025, **MCR 3.207 and 3.210** require that **before a court changes a child's established custodial environment (ECE), it must hold an evidentiary hearing** (with the proper burden of proof) ¹⁷. A total suspension of parenting time *does* alter the established custodial environment, yet here the court let the suspension continue without the mandated hearing ¹⁸ ¹⁹. Emphasize that **no findings were ever made on the record** that parenting time with Mr. Pigors would harm the child. In fact, Michigan law sets a high bar for cutting off a parent: *MCL 722.27a(3)* says parenting time can only be restricted or suspended if **clear and convincing evidence** shows the child's "physical, mental, or emotional health" would be endangered ²⁰. **No such evidence or finding exists in this case** ²¹. The suspension was based on unsubstantiated allegations and subjective impressions (e.g. the court's concerns about father's stress or rapid speech, which are not legitimate grounds to deny a child time with their parent) ²². By law, absent a statutory "endangerment" finding, the court's actions were **unlawful and must be corrected** ¹⁹.
- **Court's Failure to Address Alienation:** Note that the court has been made aware of Emily's past interference (through prior motions or FOC complaints), yet **failed to intervene or penalize** those violations. Instead, the **judge appeared to reward the misconduct** by granting the ex parte suspension. This neglect of duty violates fundamental custody principles and even **Canon 3 of the Judicial Code**, which requires diligent, impartial performance of judicial duties ²³. The court's inaction on clear signs of alienation (and willingness to entertain one-sided claims without evidence) has enabled further harm to the parent-child relationship.

Legal Action: File a **unified motion in the custody case** to *restore parenting time and enforce custody rights*. This can be titled an **"Emergency Motion to Reinstate Parenting Time and to Set Evidentiary Hearing,"** or as done on 2025-10-03, a *"Unified Emergency Ex Parte Motion"* combining several requests ²⁴. Structure this filing for maximum impact and clarity: include sections for the factual background, the legal standards, an attached affidavit of facts, a proposed order, and an exhibit index ²⁵.

- **Immediate Relief Sought:** Request an **ex parte interim order** restarting parenting time *at once* (on at least a provisional basis) **with appropriate safeguards**. Since a PPO is in effect, propose commonsense protective measures *instead of* outright denial of contact. For example, ask that exchanges occur at a neutral public location or via a third party, that communication be limited to a parenting app (like AppClose) exclusively for scheduling and emergencies, and that both parties be ordered to refrain from harassment or discussion of non-child matters (essentially, align with the PPO's intent while still allowing co-parenting) ²⁶. By showing the court there is a **safe middle-ground**, you undermine any claim that only zero contact can protect the child. Additionally, point out that **more than 14 days have passed** since the ex parte suspension, so under MCR 3.207(B)(5) the ex parte order is already operating as a temporary order – it is ripe for modification or dissolution

now ¹⁵ ¹⁶ . There is no procedural barrier to the court granting immediate relief, especially given the lack of an endangerment finding.

- **Evidentiary Hearing:** Urgently demand a **prompt evidentiary hearing** on custody/parenting time (within 21 days or as soon as the court's schedule allows) to permanently resolve the issue ¹² . Cite the new court rule amendments requiring this hearing when ECE is affected ¹⁷ . At that hearing, the court must take evidence and make specific findings on whether parenting time with Mr. Pigors truly endangers the child. Make clear in your motion that *absent clear and convincing proof of harm, state law compels that parenting time continue unhindered* ²⁰ . The burden is on the party seeking to restrict parenting (Emily) to justify it – and so far she has not met that burden. By insisting on an evidentiary hearing, you force the issue into the open, where Emily would have to produce actual evidence (not just accusations). Given the history, she will likely be unable to substantiate the extreme measure of suspension. This step is crucial to formally *record the lack of evidence* and preserve your due process rights.
- **Coordination with PPO Case:** In the same motion or a parallel request, ask the court (or Chief Judge) to **coordinate the PPO and custody matters** moving forward. Under *MCR 3.706(C)(1)*, whenever a PPO might impact child custody or parenting time, the PPO court is supposed to **consult with the court handling the custody case** to ensure consistent orders ²⁷ . That did not happen here – the two tracks have been disjointed, causing conflicting directives ²⁸ . You should request an administrative order or judicial directive that any future PPO enforcement action (e.g. a show-cause for alleged PPO violations) be scheduled with awareness of the custody schedule, and vice versa. The goal is to prevent the situation where, for example, a PPO hearing jails the father during his scheduled parenting time or a custody order is entered without acknowledging PPO conditions. In your **relief**, specifically ask that **no further PPO-related orders that affect parenting time be entered without compliance with MCR 3.205 and 3.706(C)(1)** – meaning the courts must communicate and avoid inconsistent rulings ²⁹ ³⁰ .
- **Enforce Makeup Parenting Time:** Because the child has been wrongfully kept from the father, request **make-up parenting time** (as allowed by Michigan law when one parent denies visits). Michigan's Parenting Time Guideline and MCL 722.27a encourage make-up time for missed visits, and it's within the court's power to award additional days or a specific schedule for make-ups. This not only helps repair the lost bond but also signals to the mother that denying contact has consequences. Include a proposed schedule (for instance, extra weekends or holiday time) to compensate for the period from July 29, 2025 to present.

Supporting Documents: Attach an **affidavit from Mr. Pigors (Exhibit A)** verifying the timeline of events: when the child was last with him, the dates and circumstances of denied visits, the filing of objections to the ex parte order, etc. In this **sworn statement**, also address the child's well-being in the father's care (to preempt any "endangerment" claims) – e.g., *affirm that the child has never been harmed in your care and that you are ready to follow any safety protocols*. If any **third-party statements** exist (neighbors, family, or professionals who can attest to Mr. Pigors' parenting), consider including them as exhibits. Also include copies of **the pertinent court orders** (the 8/8/25 ex parte order, the 9/09/25 order following the objection hearing, any prior custody orders establishing the parenting schedule) as exhibits so the record is clear on what is in effect. All exhibits should be tabbed in the index. For instance: "*Exhibit B: 8/8/2025 Ex Parte Order Suspending Parenting Time (no findings of fact included)*," "*Exhibit C: Father's Objection filed 8/21/2025*," "*Exhibit D: 9/9/2025 Order (showing no evidentiary hearing was held)*," "*Exhibit E: Timeline of Missed Parenting Days (prior*

affidavit dated ____.” This evidence will support the motion’s assertions of alienation and procedural violations.

Finally, underscore in your brief’s argument section that **maintaining the parent-child relationship is paramount**. Michigan public policy (and the Child Custody Act) favors a strong parent-child bond, and **courts are obligated to facilitate parenting time** in the child’s best interests. The misuse of the PPO and the court’s ex parte actions should be portrayed as *temporary aberrations* that the court can and must correct now, to realign with the law and the child’s welfare. By consolidating all these points into one well-supported motion, you maximize the impact and show the court a complete picture of why immediate relief is justified.

3. Judicial Misconduct and Bias

This component targets the **conduct of the presiding judge** (Hon. Jenny L. McNeill) for handling both the PPO and custody cases in a manner that appears biased and procedurally improper. The objective is to seek the judge’s removal (recusal/disqualification) and to create a record of judicial missteps that may be raised on appeal or further action. Key issues to raise:

- **Same Judge on PPO & Custody – Appearance of Impropriety:** It is highly unusual and problematic that the *same judge* has been overseeing **both** the personal protection order case *and* the related custody case. This dual role raises an **appearance of bias**. Under the Michigan Code of Judicial Conduct, judges must avoid not only actual impropriety but even the *appearance* of impropriety (Canon 2) and must act impartially (Canon 3) ²³. Here, by presiding over Emily’s PPO against Mr. Pigors while simultaneously adjudicating their custody disputes, Judge McNeill created a situation where her rulings in one matter could influence the other. Indeed, the **records became interlaced** – for instance, alleged PPO violations (e.g. arguments at exchanges) were being used to affect custody decisions, and vice versa ³¹. An *objective observer* could reasonably question the judge’s neutrality in such circumstances ³². The Michigan court rules explicitly recognize “serious risk of actual bias” and “appearance of impropriety” as grounds for disqualification (MCR 2.003(C)(1)(b)) ³³. Argue that this case fits that scenario: **no judge can be completely impartial** when they have heard prejudicial allegations in a PPO (often one-sided and emotionally charged) and are then asked to fairly judge custody — effectively, the judge may become a witness to contested facts or develop a fixed view of the parties. Canon 3(A)(4) also forbids judges from considering **ex parte information**; yet evidence from the PPO (which is not subject to the same standards as custody evidence) has effectively seeped into the custody case. In sum, the judge’s dual assignment violates the **appearance-of-neutrality standards of Canon 2(A)** ²³ and has likely prejudiced Mr. Pigors’ rights.
- **Pattern of One-Sided Rulings & Suppression of Evidence:** Document the **pattern of adverse rulings and procedural irregularities** that suggest bias against Mr. Pigors. For example, at the February 2025 PPO contempt hearing, the judge imposed **criminal contempt sanctions** (14 days in jail) based solely on Emily’s testimony of alleged “yelling,” **without any exhibits or physical evidence** presented ³⁴. Mr. Pigors was actively **prevented from defending himself**: the judge muted him multiple times as he tried to cite a contemporaneous police report that exonerated him ³⁵. He had **almost no notice** of that hearing (under 2 hours), so he could not be physically present or prepare evidence, yet the judge proceeded and ruled against him ³⁶. These actions demonstrate a *lack of fundamental fairness* and a disregard for due process. Cite MCR 3.708, which governs PPO contempt proceedings and guarantees the respondent **the right to present evidence and to cross-**

examine witnesses ³⁷ – rights that were denied in Mr. Pigors’ case. Note also that the judge consistently **failed to make required findings** on the record. Whether it was jailing Mr. Pigors for contempt, or suspending parenting time, the judge gave **no specific factual findings** or reasoning (e.g. no finding of “endangerment” for the suspension, no finding of willful violation beyond a reasonable doubt for the contempt). This violates Michigan law (judges must state findings especially when fundamental rights are at stake) and reinforces the appearance that the judge was **predisposed against Mr. Pigors** rather than impartially weighing evidence. Furthermore, when Mr. Pigors attempted to introduce favorable evidence – like the police/EMS reports disproving the poisoning claim, or AppClose logs showing his communications were benign – the court either *excluded or ignored* such evidence. By contrast, Emily’s claims (even if unsubstantiated or hearsay) were readily credited. This double-standard in evidentiary treatment is a hallmark of bias. Each of these incidents on their own is troubling; viewed cumulatively, they establish a **pattern of judicial conduct that falls short of the neutral, even-handed adjudication that due process requires** ³² .

- **Improper Service and Intimidation Tolerated:** Add that the court has *tolerated or overlooked* irregular (even egregious) methods employed by Emily’s side to gain advantage. For instance, **Emily’s father serving show-cause orders in person** in a harassing manner – one was served during a child exchange and another with virtually no notice before the hearing ³⁸ . In one extreme case described, he may have even broken into a window to leave papers. Such tactics are not only legally improper, but they suggest an attempt to intimidate Mr. Pigors. A fair judge would have recognized these ploys and taken steps to protect the integrity of the process (for example, voiding a service that was done via trespass, or at least admonishing the petitioner). Judge McNeill, however, did nothing – implying an *acceptance or bias toward the petitioner’s side*. This is another factor contributing to the **appearance of a tilted playing field** in these cases.
- **Canon Violations and Due Process Concerns:** Summarize that Judge McNeill’s conduct likely violates **Michigan’s judicial Canons** and Mr. Pigors’ constitutional rights. Canon 3 requires a judge to afford every person a full right to be heard according to law; instead Mr. Pigors was silenced and sidelined. Canon 2 emphasizes public confidence in the judiciary’s impartiality; here, confidence is undermined by the judge’s one-sided management. In extreme cases like *Caperton v. Massey*, the U.S. Supreme Court held that even the *probability of bias* can rise to a due process violation ³⁹ . Argue that this is such a case: the combination of the judge’s dual role, her procedural shortcuts against Mr. Pigors, and her indifference to the Watsons’ misconduct creates at least a **serious risk of actual bias**, if not actual bias, which offends due process ³³ ³² . Due process guarantees an **impartial decisionmaker** ³⁷ – Mr. Pigors has not had one, by all indications.

Legal Action: Invoke the process for **Judicial Disqualification** under *MCR 2.003*. This is done by filing a **Motion to Disqualify the Judge**, supported by a detailed affidavit of facts and a request for referral to the chief judge if the assigned judge denies the motion ⁴⁰ ⁴¹ . Key elements of such a motion (many of which have been prepared in your draft dated 2025-10-03) include:

- **Grounds:** Cite **MCR 2.003(C)(1)(a)** (actual bias or prejudice) and **(C)(1)(b)** (serious risk of actual bias / appearance of impropriety) as the legal grounds for disqualification ³³ . Make the case that both are present here – the judge has shown actual bias in her rulings and behavior, or at minimum the situation would *cause a reasonable person to question the judge’s impartiality*. Support these grounds with the factual examples above (muting the mic, one-sided evidence rulings, etc.). Also reference

the **Code of Judicial Conduct Canons 2 and 3** as interpretive guidance for (C)(1)(b) – e.g., under Canon 2(A) a judge must avoid even the appearance of impropriety ²³, which has been breached by presiding over both related cases; under Canon 3(A)(4) a judge must not consider extrajudicial information or allow ex parte communications, yet the PPO/custody crossover has effectively done that ²³. Mention Caperton and other precedent to strengthen the argument that bias (or its appearance) cuts to the heart of due process ⁴². The Michigan rule itself incorporates the *Caperton* standard for serious risk of bias ³⁹.

- **Procedure:** File the motion in **each case** if necessary (PPO case and custody case). According to MCR 2.003(D), Judge McNeill will have the first opportunity to rule on the motion. Clearly state in the motion that if she denies it, you are **requesting de novo review by the Chief Judge** (Hon. Kenneth Hoopes) as provided by MCR 2.003(D)(3)(a) ⁴⁰ ⁴³. This is important – it signals that you will escalate the matter. In fact, you have already *petitioned the Chief Judge administratively* about some of these issues ⁴⁴ ⁴⁵; include that background in the motion or as an exhibit to show that the Chief Judge is aware of coordination problems. The motion should ask that if it's granted, the case(s) be reassigned to a different judge (per MCR 2.003(D)(4)) ⁴⁶. If specific orders were entered by Judge McNeill in a manner that violated due process (e.g. the February contempt order, the parenting time suspension), you can alternatively request those be **vacated or reconsidered by the new judge** as part of the relief ⁴⁷ – though the primary relief is removal of the judge.
- **Tone and Strategy:** When drafting this motion, maintain a **professional, fact-focused tone**. Accuse the *actions* (the rulings, the process) of bias rather than making unduly personal attacks on the judge's character. The goal is to make a record for appeal and to actually win a recusal; being measured and citing concrete examples will be more effective. You've compiled a strong record: e.g., *"On [date], at a PPO show-cause hearing, the Court muted Respondent's microphone at least three times, preventing him from offering a police report into evidence; no exhibits were admitted against him, yet he was jailed for 14 days ³⁵."* Recount a series of such events (label them #1, #2, #3 in the affidavit) to show a **pattern**. The attached *Verified Statement of Facts* (affidavit) in support of disqualification should be exhaustive. You already have a version of this ("Monolithic" motion) which lists the events in detail ⁴⁸ ⁴⁹; ensure it's updated with the latest incident (e.g. if there was a third show-cause served via window or any new retaliation after 10/03/2025). By consolidating these into one filing, you present a compelling narrative that **Judge McNeill's continued involvement would undermine public confidence in a fair process** ³².
- **Outcome Sought:** The proposed order should state that **Judge McNeill is disqualified/recused** from any further proceedings in both the PPO and custody cases. It should direct the court clerk or Chief Judge to reassign the matters to a different judge in the circuit ⁵⁰. Additionally (if you choose to include it), the order could **vacate the February 2025 contempt finding and any orders entered in violation of due process** ⁴⁷ – on the theory that a biased judge's orders cannot stand. Even if that portion is ambitious, it serves to flag those orders as problematic for the next judge or an appellate court. If Judge McNeill denies the motion (likely, as judges rarely concede bias), immediately file the request for **de novo review** with the Chief Judge. The Chief Judge will then schedule a hearing or decision on the disqualification motion. Be prepared to re-argue the points succinctly there. (Your administrative petition already primed the Chief Judge about these issues, which may help ⁴⁵ ⁴³.)

Note: Pursuing judicial disqualification is an aggressive move, but given the documented misconduct, it is warranted and strategically wise. Removing or pressuring the judge can not only improve your chances of fair treatment going forward, but it also *creates a record* that you objected to the court's bias at every step (preserving the issue for appeal). This minimizes the risk of **retaliation** because any further harsh action by the judge could be seen as vindictive once a bias claim is raised. In other words, after you file the motion, the judge knows her conduct is under a microscope, which may temper her behavior if she remains on the case. If she does not step aside and continues with questionable rulings, that only strengthens your eventual appeal or any federal action. By meticulously following MCR 2.003's procedure, citing rule-based grounds, and supporting with facts, you make a strong, procedurally compliant case for why this judge should play no further role in your dispute ³³ ³² .

4. Relief Requested & Filing Package Format

Finally, ensure that all the above issues are presented in a **comprehensive, well-organized set of filings** that comply with Michigan Court Rules and local filing requirements. The aim is a *minimum-document, maximum-impact* package – in other words, combine related issues where appropriate, avoid unnecessary duplication, and present everything in a clear, indexed format for the court's review.

- **Consolidation vs. Separate Filings:** Use as few documents as possible **without sacrificing clarity or violating court rules**. Some matters must be filed separately in their respective cases (for example, the PPO termination motion goes in the PPO case, whereas parenting time relief is in the custody case, and the judicial bias motion might need to be filed in each case). However, within each case, you can consolidate requests. You have wisely prepared a **“Unified” motion in the custody case combining the urgent requests (reinstate parenting time, enforce PPO coordination, set hearing) into one filing** ²⁵ – stick with that approach. It not only makes it easier for the judge to grasp the full picture, but it also prevents the court or the opposing party from trying to split issues and delay. Similarly, in the PPO case, you might file one motion that both seeks to terminate/modify the PPO *and* (if applicable) asks for other relief like dissolving any pending show-cause or staying enforcement pending resolution. However, be cautious: a motion to terminate PPO (using SCAO Form CC 379) might need to stand on its own in terms of format, so ensure any combined approach still meets the **Michigan Court Rules for motion practice (MCR 2.119)**. Each motion should contain a clear **“Relief Requested”** section at the start ⁵¹ enumerating exactly what you want the court to do. By focusing on the *strongest legal points* (fraud, lack of findings, due process, bias) and not minor grievances, you keep the judge's attention on the merits.
- **Document Format (MiFILE Ready):** All documents should be in **DOCX or PDF format** as required by the MiFILE e-filing system. Typically, motions and briefs can be uploaded as PDF; proposed orders may be required in DOCX for judges to edit. Check local court guidelines on MiFILE formatting (font, margins, electronic signature etc.) and ensure compliance. Use clear headings and subheadings in each document (as we have done in this outline) to make them easy to navigate. For instance, your motions already have sections like “Relief Requested,” “Procedural Posture,” “Legal Standard,” etc., which is excellent for judicial clarity ⁵² ¹⁹ . Keep paragraphs short and numbered where appropriate. If the court rules require a certain order of documents (e.g., motion, then brief, then exhibits), follow that. **Attach a Proposed Order** for each motion: draft it as a separate document (usually a one-page order with a few decretal paragraphs granting the key relief). This is required by many judges and allows them to easily sign off if they agree. Make sure the proposed orders are concise and mirror the relief in your motions (e.g., an order granting the motion to reinstate

parenting time, ordering specific parenting time terms and setting a hearing date; an order terminating the PPO; an order disqualifying the judge, etc.). Having these ready in **editable format (DOCX)** is important for MiFILE ²⁵ .

- **Exhibit Stack with Index:** Prepare a **full exhibit binder** that will accompany your filings. Given the volume of evidence, organize it meticulously:
- Label each exhibit with a letter or number (letters are common in motions – e.g. Exhibit A, B, C... – and were used in your drafts ⁵³). Make sure these labels are referenced correctly in your motions/affidavits. For example, “(see Exhibit D)” in the text should correspond to the document labeled Exhibit D in the bundle.
- Create an **Exhibit Index** page (or section at the end of your brief) that lists each exhibit by label and a brief description ⁵³ . This helps the judge quickly identify each piece of evidence. Your index might look like: “*Exhibit A – Affidavit of Andrew Pigors (dated ___)*”; “*Exhibit B – Police Report from 10/15/2023 (no arrest made)*”; “*Exhibit C – Photo of [item] with metadata*”; “*Exhibit D – Text Message Logs (AppClose export) showing exchange coordination,*” etc.
- Ensure all **exhibits are legible** and, if possible, **highlight or bookmark key portions** (for example, if you attach a multi-page police report, you might highlight the line “no signs of assault observed”). When e-filing, exhibits can be combined into one PDF or uploaded separately. Given the instruction to possibly “bundle into ZIP,” you might compress all the files (motion, brief, affidavit, proposed order, exhibits) into a single ZIP for convenience. However, check MiFILE’s rules – some jurisdictions prefer separate PDFs for each, while others allow a single PDF with bookmarks. If bundling, name files clearly (e.g., “MotionReinstatePT.pdf”, “Affidavit.pdf”, “Exhibits A-M.pdf”, “ProposedOrder.docx”). In any case, **auto-number or label pages** if needed (some courts like Bates-stamped exhibit pages). The provided *MiFile_Binder_v21.pdf* in your drive suggests you have been compiling such binders; continue using that method so the court receives a polished, indexed set.
- **Adherence to Court Rules:** Double-check that each document complies with Michigan Court Rules and local rules:
- **Caption and Signature:** Every document should have the proper case caption (court name, parties, case number, judge) and your signature block. As a pro se, include “in propria persona” and your contact info ⁵⁴ . Add the verification statement under MCR 1.109(D)(3) for affidavits ⁵⁵ , and a **certificate of service** (MCR 2.107) on each filing indicating how and when you served the other party ⁵⁵ .
- **Length and Formatting:** Keep motions and briefs within any page limits (if none specified, aim for brevity without sacrificing content – your unified brief is naturally longer due to complexity, but it is well-organized). Use **12-point font, double-space** for text, as required by many courts, and one-inch margins. Number the pages. If you cite cases or statutes, use proper citation form (Michigan courts appreciate pinpoint citation to published cases or statutes). We have cited primarily court rules and statutes here, which is appropriate; if you refer to any external case law (e.g., *Caperton*, *Pierron v. Pierron* for ECE ⁵⁶ , etc.), consider attaching key excerpts or the full opinion as an exhibit if particularly relevant.
- **Benchbook Standards:** Michigan Judges often refer to SCAO benchbooks for procedural guidance. Your filings should align with those best practices. For example, the **Michigan Family Law Benchbook** would expect that in a parenting time motion you address the *best interests of the child* if

relevant – you can briefly note that restoring the father’s parenting time is in the child’s best interest (MCL 722.23 factors, such as love, affection, and emotional ties, favor maintaining a relationship). The **PPO Benchbook** emphasizes that PPOs are not to be used as a custody weapon, so by documenting fraud and misuse, you’re actually echoing those guidelines. In short, frame your arguments in a way a judge following the benchbook would find credible and pressing (e.g., “Per the SCAO Family Division Benchbook, parenting time orders should ensure frequent, constant contact with both parents when safe – here the court can do so safely, and it is required by law”). This shows you are seeking relief consistent with established standards, not something outlandish.

- **Strategic Considerations:** The **overall strategy** is to be assertive yet precise. You are asking for significant remedies (vacating orders, removing a judge), but the **supporting law and facts are on your side**. By presenting everything in a neat package, you minimize the risk of being seen as scattershot or vexatious – instead, you appear as a litigant with a well-founded, rights-driven grievance. This is important for **retaliation minimization**. A judge (or opposing counsel) looking at your filings will see that you have based each request on concrete evidence and rule violations, not personal attacks. This reduces the chance the court will dismiss your concerns or retaliate (sanction you, rule against you out of annoyance, etc.). Moreover, combining related issues means the court can address them in one hearing, avoiding multiple appearances that could otherwise frustrate the judge. In your writing, use a respectful tone towards the court but **do not shy away from pointing out where the court failed its duties** – you can do so by citing the rules and saying the court “did not do X as required.” That way it’s about the procedure, not a personal affront. You have already set this tone in the administrative petition to the Chief Judge, which politely but firmly notes the lack of coordination and need for compliance with rules 57 58 . Continue that approach.

- **Optional Federal Action (42 U.S.C. § 1983):** Prepare, but *do not necessarily file immediately*, a **federal lawsuit under 42 U.S.C. § 1983** as a last-resort escalation. This would be a separate action in the U.S. District Court (Western District of Michigan) claiming that your civil rights have been violated under color of state law. Grounds could include the denial of due process (bias and refusal to hear your side can violate the Fourteenth Amendment) and the infringement of your **fundamental right to family integrity/parental rights** without due process. For example, the complaint could allege that Judge McNeill, acting under color of law, deprived you of your liberty interest in the care and custody of your child without procedural due process (no fair hearing, no unbiased tribunal). It could also name Emily and her parents as co-conspirators under §1983 if you have evidence they colluded with any state actors (though private parties are generally not liable under §1983 unless they conspired with or were willful participants in state action). Be aware that suing the judge triggers judicial immunity issues – judges are immune from damages for judicial acts, but you can seek **injunctive relief or declaratory relief** (and possibly attorney fees under §1988 if you prevail). A narrowly tailored request in federal court could be to enjoin enforcement of the PPO or the custody suspension on constitutional grounds, or a declaratory judgment that your rights were violated. This is a complex step and can antagonize the state court, so use it strategically. The mere preparation of a §1983 complaint, however, can be a bargaining chip if communicated indirectly (sometimes just knowing you are ready to go federal encourages a state court to be more cautious). If you do file federally, ensure you’ve exhausted or at least pursued remedies in state court (which you are doing with the motions above) – federal courts may abstain if there are ongoing state proceedings (Younger abstention). One option is to finalize the documents and **hold them in abeyance** while giving the state court a chance to rectify the situation. If the state court fails to act or continues to violate your rights, you can then proceed with the federal case. Should it come to that, follow **FRCP**

standards for the complaint (short and plain statement of facts, etc.) and include counts for due process, maybe equal protection (if you believe the court treated you differently due to gender bias, etc., though stick to what's provable). Also, consider if any **state officials or entities** (e.g., Friend of the Court employees, police who enforced unlawful orders) have liability – but again, be mindful of immunities. This is why it's marked "optional": it's a powerful tool but one that must be used carefully.

- **Final Assembly (ZIP Bundle):** Once all documents are prepared, do a final review and assemble them for filing. Name each file clearly for the clerk's convenience. If local e-filing rules allow a **single ZIP upload**, compress the files into one ZIP archive (e.g., "Pigors_Filings_Oct2025.zip") containing:

- The **Motion(s)** (and supporting brief, if separate) for each issue,
- The **Affidavit(s)** (signed and dated) in support,
- The **Proposed Orders**,
- The **Exhibits** folder or PDF (with index).

Make sure the ZIP structure is logical (some courts prefer no folders inside the ZIP, just files).

Alternatively, if filing each document separately on MiFILE, use the interface to attach each component in the appropriate category (e.g., as "Motion," "Brief," "Exhibit," "Proposed Order"). The idea of the "bundle" is to ensure the court receives a **complete package** at once, leaving no loose ends or supplemental filings later. This conveys professionalism and urgency – everything the court needs to grant relief is before it.

By following the above plan, you will produce a **procedurally compliant**, well-supported set of legal documents that hit all the critical points. Each document is crafted to be aggressive in remedy (holding nothing back in the relief you seek) yet firmly grounded in Michigan law and court rules. This combination of assertiveness and adherence to rule-of-law will give you the best chance at rectifying the injustices (the fraud on the court, the parental alienation, and the judicial misconduct) while minimizing the risk of your filings being ignored or dismissed. Every allegation you make is backed by evidence or citation (as we have annotated here), and every request is backed by authority. Such a record will not only serve you in the trial court but also protect your interests on appeal or in any future proceeding.

Finally, remain vigilant after filing: if the relief is granted, great – if not, you have preserved your objections. With this comprehensive legal package, you are aggressively standing up for your rights and your child's best interests, within the bounds of the law and procedure. The **next steps** will be to attend any hearings scheduled on these motions, where you will reiterate the key arguments (essentially summarizing what's in these documents) and potentially provide oral testimony (especially on the fraud allegations, if the court permits). Given the thoroughness of your written submissions, you will be well-prepared for that stage. Good luck – you have marshaled strong facts and law, and now they are presented in the optimal format for adjudication.

Sources:

- Michigan Court Rules (selected provisions and commentary) 33 17 27
- Michigan Compiled Laws §722.27a(3) (parenting time endangerment standard) 20
- Michigan Code of Judicial Conduct, Canons 2 and 3 (impartiality and diligence) 23
- Filed Affidavits/Declarations of Andrew J. Pigors (PPO and custody cases) 1 3
- Unified Motion and Petition excerpts (14th Circuit Court, Muskegon) 11 32 45

1 2 7 9 10 34 Declaration_Support_Terminate_PPO_Pigors (1).docx

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3 38 WATSON_CONTEXT_TRAIL(3).txt

<https://drive.google.com/file/d/18WFqyt7F3yJLtaJ2wYn0GwuPtItXAMkF>

4 5 Michigan Court of Appeals Provides Binding Guidance on Motions for Relief from Judgment and the Availability of Attorney Fees for Fraudulent or Unlawful Conduct - Altior Law

<https://altiorlaw.com/michigan-court-of-appeals-provides-binding-guidance-on-motions-for-relief-from-judgment-and-the-availability-of-attorney-fees-for-fraudulent-or-unlawful-conduct/>

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Petition_to_Chief_Judge_MEEK2_MEEK3_MEEK4_Pigors_2025-09-25 (1).docx

<https://drive.google.com/file/d/1u1kWXw7TuDY6ft8uCmvtR2d4TRq1UxeJ>

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